

MR01

Particulars of a charge

106121/66

laserform

A fee is payable with this form
Please see 'How to pay' on the
last page

You can use the WebFiling service to file this form online
Please go to www.companieshouse.gov.uk

✓ **What this form is for**
You may use this form to register
a charge created or evidenced by
an instrument

✗ **What this form is NOT for**
You may not use this form to
register a charge where there is no
instrument Use form MR08

For further information, please
refer to our guidance at
www.companieshouse.gov.uk

This form **must be delivered to the Registrar for registration within 21 days** beginning with the day after the date of creation of the charge. If delivered outside of the 21 days it will be rejected unless it is accompanied by a court order extending the time for delivery

 You **must** enclose a certified copy of the instrument with this form. This will be scanned and placed on the public record. **Do not send the original**



A505MF10

A06

06/02/2016

#88

COMPANIES HOUSE

1 Company details

Company number 0 8 5 0 6 5 7 1

Company name in full ALPHA FMC GROUP LIMITED

3 For official use

→ **Filing in this form**
Please complete in typescript or in
bold black capitals

All fields are mandatory unless
specified or indicated by *

2 Charge creation date

Charge creation date 0 3 0 2 2 0 1 6

3 Names of persons, security agents or trustees entitled to the charge

Please show the names of each of the persons, security agents or trustees
entitled to the charge

Name LLOYDS BANK PLC (as security trustee for
the Secured Parties (as defined in the instrument))

Name

Name

Name

If there are more than four names, please supply any four of these names then
tick the statement below

☐ I confirm that there are more than four persons, security agents or
trustees entitled to the charge

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4

Brief description

Brief description

Please give a short description of any land, ship, aircraft or intellectual property registered or required to be registered in the UK subject to a charge (which is not a floating charge) or fixed security included in the instrument

N/A

Please submit only a short description. If there are a number of plots of land, aircraft and/or ships, you should simply describe some of them in the text field and add a statement along the lines of, "for more details please refer to the instrument"

Please limit the description to the available space

5

Other charge or fixed security

Does the instrument include a charge (which is not a floating charge) or fixed security over any tangible or intangible or (in Scotland) corporeal or incorporeal property not described above? Please tick the appropriate box

☒ Yes

☐ No

6

Floating charge

Is the instrument expressed to contain a floating charge? Please tick the appropriate box

☒ Yes Continue

☐ No Go to **Section 7**

Is the floating charge expressed to cover all the property and undertaking of the company?

☒ Yes

7

Negative Pledge

Do any of the terms of the charge prohibit or restrict the company from creating further security that will rank equally with or ahead of the charge? Please tick the appropriate box

☒ Yes

☐ No

8

Trustee statement ¹

You may tick the box if the company named in Section 1 is acting as trustee of the property or undertaking which is the subject of the charge

☐

¹ This statement may be filed after the registration of the charge (use form MR06)

9

Signature

Signature

Please sign the form here

Signature

X DLA PIREX UK LLP X

This form must be signed by a person with an interest in the charge

MR01

Particulars of a charge



Presenter information

You do not have to give any contact information, but if you do, it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name DENISE PHILLIPS

Company name DLA Piper UK LLP

Address 3 Noble Street

London

Post town

County/Region

Postcode E C 2 V 7 E E

Country

DX DX. 33866 Finsbury Square

Telephone 0207 796 6302



Certificate

We will send your certificate to the presenter's address if given above or to the company's Registered Office if you have left the presenter's information blank.



Checklist

We may return forms completed incorrectly or with information missing.

Please make sure you have remembered the following:

- ☐ The company name and number match the information held on the public Register
- ☐ You have included a certified copy of the instrument with this form
- ☐ You have entered the date on which the charge was created
- ☐ You have shown the names of persons entitled to the charge
- ☐ You have ticked any appropriate boxes in Sections 3, 5, 6, 7 & 8
- ☐ You have given a description in Section 4, if appropriate
- ☐ You have signed the form
- ☐ You have enclosed the correct fee
- ☐ Please do not send the original instrument, it must be a certified copy



Important information

Please note that all information on this form will appear on the public record.



How to pay

A fee of £13 is payable to Companies House in respect of each mortgage or charge filed on paper.

Make cheques or postal orders payable to 'Companies House'.



Where to send

You may return this form to any Companies House address. However, for expediency, we advise you to return it to the appropriate address below:

For companies registered in England and Wales.
The Registrar of Companies, Companies House,
Crown Way, Cardiff, Wales, CF14 3UZ
DX 33050 Cardiff

For companies registered in Scotland
The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF
DX ED235 Edinburgh 1
or LP - 4 Edinburgh 2 (Legal Post)

For companies registered in Northern Ireland
The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG
DX 481 N R Belfast 1



Further information

For further information, please see the guidance notes on the website at www.companieshouse.gov.uk or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on the website at www.companieshouse.gov.uk



FILE COPY

CERTIFICATE OF THE REGISTRATION OF A CHARGE

Company number: 8506571

Charge code: 0850 6571 0003

The Registrar of Companies for England and Wales hereby certifies that a charge dated 3rd February 2016 and created by ALPHA FMC GROUP LIMITED was delivered pursuant to Chapter A1 Part 25 of the Companies Act 2006 on 6th February 2016

DX

Given at Companies House, Cardiff on 11th February 2016



Companies House



**THE OFFICIAL SEAL OF THE
REGISTRAR OF COMPANIES**

THIS ACCESSION DEED is made on 3 February 2016

BETWEEN

- (1) EACH COMPANY LISTED IN SCHEDULE 1 (each an "Acceding Company"),
- (2) CAELIUS MIDCO 2 LIMITED, a company incorporated in England and Wales with registered number 09963816 (the "Parent"), and
- (3) LLOYDS BANK PLC (as Security Agent for the Secured Parties) (the "Security Agent")

BACKGROUND

This Accession Deed is supplemental to a debenture dated 3 February 2016 and made between (1) the Chargors named in it and (2) the Security Agent (the "Debenture").

IT IS AGREED:

1. DEFINITIONS AND INTERPRETATION

(a) **Definitions**

Terms defined in, or construed for the purposes of, the Debenture have the same meanings when used in this Accession Deed including the recital to this Accession Deed (unless otherwise defined in this Accession Deed)

(b) **Construction**

Clause 1.2 (*Interpretation*) of the Debenture applies with any necessary changes to this Accession Deed as if it were set out in full in this Accession Deed

2. ACCESSION OF THE ACCEDING COMPANY

(a) **Accession**

Each Acceding Company:

- (i) unconditionally and irrevocably undertakes to and agrees with the Security Agent to observe and be bound by the Debenture, and
- (ii) creates and grants at the date of this Deed the charges, mortgages, assignments and other security which are stated to be created or granted by the Debenture,

as if it had been an original party to the Debenture as one of the Chargors.

(b) **Covenant to pay**

Without prejudice to the generality of clause 2(a) (*Accession*), each Acceding Company (jointly and severally with the other Chargors and each other Acceding Company), covenants in the terms set out in clause 2 (Covenant to pay) of the Debenture

DLA PIPER
I CERTIFY THAT SAVE FOR MATERIAL REDACTED
PURSUANT TO S89G OF THE COMPANIES ACT 2006,
THIS IS A TRUE, COMPLETE AND CORRECT COPY
OF THE ORIGINAL INSTRUMENT
DATE 5 February 2016
SIGNED DLA Piper UK LLP

(c) **Charge and assignment**

Without prejudice to the generality of clause 2(a) (*Accession*), each Acceding Company with full title guarantee (on the terms set out in clause 3.1 (*Nature of security*) of the Debenture, charges and assigns (and agrees to charge and assign) to the Security Agent for the payment and discharge of the Secured Obligations, all its right, title and interest in and to the property, assets and undertaking owned by it or in which it has an interest, on the terms set out in clauses 3 (*Grant of security*), 4 (*Fixed security*) and 5 (*Floating charge*) of the Debenture including (without limiting the generality of the foregoing)

- (i) by way of first legal mortgage all the freehold and leasehold Real Property (if any) vested in or charged to the Acceding Company (including, without limitation, the property specified against its name in part 1 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) (if any));
- (ii) by way of first fixed charge:
 - (A) all the Charged Securities (including, without limitation, those specified against its name in part 2 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) (if any)); together with
 - (B) all Related Rights from time to time accruing to them;
- (iii) by way of first fixed charge each of its Collection Accounts and its other accounts with any bank or financial institution at any time (including, without limitation, those specified against its name in part 3 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*)) and all monies at any time standing to the credit of such accounts,
- (iv) by way of first fixed charge all Intellectual Property (including, without limitation, the Intellectual Property specified against its name in part 4 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) (if any)),
- (v) by way of absolute assignment the Relevant Contracts (including, without limitation, those specified against its name in part 5 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) (if any)), all rights and remedies in connection with the Relevant Contracts and all proceeds and claims arising from them, and
- (vi) by way of absolute assignment the Insurances (including, without limitation, those specified against its name in part 6 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) (if any)), all claims under the Insurances and all proceeds of the Insurances

(d) **Representations**

Each Acceding Company makes the representations and warranties set out in this paragraph 2(d) to the Security Agent and to each other Secured Party as at the date of this Accession Deed.

- (i) each/ Acceding Company is the sole legal and beneficial owner of all of the Security Assets identified against its name in schedule 2 (*Details of Security Assets*),
- (ii) the Charged Securities listed in part 2 of schedule 2 to the Accession Deed (*Details of Security Assets owned by the Acceding Companies*) constitute the entire share capital owned by each Acceding Company in the relevant company and constitute the entire share capital of each such company; and
- (iii) part 1 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) identifies all freehold and leasehold Real Property which is beneficially owned by each Acceding Company at the date of this Deed.

(e) **Consent**

Pursuant to clause 23.3 (*Accession Deed*) of the Debenture, the Parent (as agent for itself and the existing Chargors)

- (i) consents to the accession of each Acceding Company to the Debenture on the terms of this Accession Deed, and
- (ii) agrees that the Debenture shall, after the date of this Accession Deed, be read and construed as if each Acceding Company had been named in the Debenture as a Chargor

3. CONSTRUCTION OF DEBENTURE

This Accession Deed shall be read as one with the Debenture so that all references in the Debenture to "*this Deed*" and similar expressions shall include references to this Accession Deed

4. THIRD PARTY RIGHTS

Save as expressly provided to the contrary in the Debenture, a person who is not a party to this Accession Deed has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce or enjoy the benefit of any term of this Accession Deed.

5. NOTICE DETAILS

Notice details for each Acceding Company are those identified with its name below.

6. COUNTERPARTS

This Accession Deed may be executed in any number of counterparts, and this has the same effect as if the signatures (and seals, if any) on the counterparts were on a single copy of this Accession Deed

7. GOVERNING LAW

This Accession Deed and any non-contractual obligations arising out of or in connection with it shall be governed by English law

IN WITNESS of which this Accession Deed has been duly executed by each Acceding Company and the Parent as a deed and duly executed by the Security Agent and has been delivered on the first date specified on page 1 of this Accession Deed by each Acceding Company and the Parent.

SCHEDULE 1 TO THE ACCESSION DEED**The Acceding Companies**

Company name	Registered number	Registered office
Alpha FMC Group Holdings Limited	08555831	60 Gresham Street, London, United Kingdom, EC2V 7BB
Alpha FMC Group Limited	08506571	60 Gresham Street, London, United Kingdom, EC2V 7BB
Alpha Financial Markets Consulting Group Limited	07160664	60 Gresham Street, London, United Kingdom, EC2V 7BB
Alpha Financial Markets Consulting Limited	04710715	60 Gresham Street, London, United Kingdom, EC2V 7BB
Glass Client Programs Ltd	05305334	60 Gresham Street, London, United Kingdom, EC2V 7BB

SCHEDULE 2 TO THE ACCESSION DEED**Details of Security Assets owned by the Acceding Companies****Part 1 - Real Property**

None at the date of this deed.

Part 2 - Charged Securities

Chargor	Name of company in which shares are held	Class of shares held	Number of shares held	Issued share capital
Alpha FMC Group Holdings Limited	Alpha FMC Group Limited	Ordinary Shares of £1 00	1	£1
Alpha FMC Group Limited	Alpha Financial Markets Consulting Group Limited	Ordinary Shares of £0 01 each	603,589,325	£6,035,893 25
		USA Ordinary Shares of \$0 10 each	250,000	\$25,000
Alpha Financial Markets Consulting Group Limited	Alpha Financial Markets Consulting Limited	Ordinary Shares of £1 00 each	275,000	£275,000
Alpha Financial Markets Consulting Group Limited	Glass Client Programs Ltd	Ordinary Shares of £0.10 each	1,312	£131.20

Part 3 - Charged Accounts

Collection Accounts			
Account Holder	Account Number	Account Bank	Account sort code
Alpha Financial Markets Consulting Limited	400621-██████702	HSBC	MIDLGB22
Alpha Financial Markets Consulting Limited	400290-██████193	HSBC	MIDLGB22
Alpha Financial Markets Consulting Limited	400515-██████320	HSBC	MIDLGB22

Collection Accounts			
Account Holder	Account Number	Account Bank	Account sort code
Alpha Financial Markets Consulting Limited	400515-  411	HSBC	MIDLGB22

Part 4 - Intellectual Property

Trade Mark	Application/registration no.	Country	Applicant/owner	Classes	Filing date	Registration date
 alpha ^{SMC}	1023507	Europe	Alpha Financial Markets Consulting Limited	9,35,36,42	17/08/2009	17/08/2009
 alpha ^{SMC}	4000450	USA	Alpha Financial Markets Consulting Limited	9,35,36,42	17/08/2009	26/07/2011
 alpha ^{SMC}	1023507	Switzerland	Alpha Financial Markets Consulting Limited	9,35,36,42	17/08/2009	17/08/2009
	3109887	UK	Alpha Financial Markets Consulting Limited	9,35,36,42	21/05/2015	09/10/2015
 Omega	1033354	Europe	Alpha Financial Markets Consulting Limited	35	14/01/2010	14/01/2010
 Omega	1033354	Switzerland	Alpha Financial Markets Consulting Limited	35	14/01/2010	14/01/2010
 alpha ^{SMC}	2427683	UK	Alpha Financial Markets Consulting Limited	9,35,36,42	20/07/2006	29/02/2008
 Omega	3109879	UK	Alpha Financial Markets Consulting Limited	35	21/05/2015	30/10/2015

Trade Mark	Application/ registration no.	Country	Applicant/ owner	Class	Filing date	Registration date
 Omega	2526234	UK	Alpha Financial Markets Consulting Limited	35	16/09/ 2009	15/01/2010
 Omega	3885676	USA	Alpha Financial Markets Consulting Limited	35	14/01/ 2010	07/12/2010

Part 5 - Material Contracts

None at the date of this Deed

Part 6 - Insurances

Acceding Company	Insurer	Policy number
Alpha FMC Group Holdings Limited	Chubb	35979821 (Masterpackage)
Alpha FMC Group Limited	Chubb	35979821 (Masterpackage)
Alpha Financial Markets Consulting Group Limited	Chubb	35979821 (Masterpackage)
Alpha Financial Markets Consulting Limited	Chubb	35979821 (Masterpackage)
Glass Client Programs Ltd	Chubb	35979821 (Masterpackage)
Alpha FMC Group Holdings Limited	Chubb	82340561 (Crime)
Alpha FMC Group Limited	Chubb	82340561 (Crime)
Alpha Financial Markets Consulting Group Limited	Chubb	82340561 (Crime)
Alpha Financial Markets Consulting Limited	Chubb	82340561 (Crime)
Glass Client Programs Ltd	Chubb	82340561 (Crime)
Alpha FMC Group Holdings Limited	Chubb	82340562 (Professional Indemnity)
Alpha FMC Group Limited	Chubb	82340562 (Professional Indemnity)
Alpha Financial Markets Consulting Group Limited	Chubb	82340562 (Professional Indemnity)
Alpha Financial Markets Consulting Limited	Chubb	82340562 (Professional Indemnity)

Acceding Company	Insurer	Policy number
Glass Client Programs Ltd	Chubb	82340562 (Professional Indemnity)
Alpha FMC Group Holdings Limited	Ace European Group	UKDAO028525116 (Management Liability)
Alpha FMC Group Limited	Ace European Group	UKDAO028525116 (Management Liability)
Alpha Financial Markets Consulting Group Limited	Ace European Group	UKDAO028525116 (Management Liability)
Alpha Financial Markets Consulting Limited	Ace European Group	UKDAO028525116 (Management Liability)
Glass Client Programs Ltd	Ace European Group	UKDAO028525116 (Management Liability)

EXECUTION PAGES OF THE ACCESSION DEED

THE ACCEDING COMPANIES

Executed as a deed, but not delivered until the)
first date specified on page 1, by ALPHA FMC)
GROUP HOLDINGS LIMITED acting by)

Director

Witness signature

Witness name

Witness address:



PAUL ANDERSON

16 CHARLOTTE SQUARE

EDINBURGH

EH2 4DF

Address: 60 Gresham Street, London EC2V 7BB

Attention: Euan Fraser/ Nick Baker

Executed as a deed, but not delivered until the)
first date specified on page 1, by ALPHA FMC)
GROUP LIMITED acting by)

Director

Witness signature

Witness name

Witness address:



PAUL ANDERSON

16 CHARLOTTE SQUARE

EDINBURGH

EH2 4DF

Address: 60 Gresham Street, London EC2V 7BB

Attention: Euan Fraser/ Nick Baker

Executed as a deed, but not delivered until the)
first date specified on page 1, by ALPHA)
FINANCIAL MARKETS CONSULTING)
GROUP LIMITED acting by

Director 
Witness signature 
Witness name PAUL ANDERSON
Witness address 16 CHARLOTTE SQUARE
EDINBURGH
EH2 4DF

Address: 60 Gresham Street, London EC2V 7BB

Attention: Euan Fraser/ Nick Baker

Executed as a deed, but not delivered until the)
first date specified on page 1, by ALPHA)
FINANCIAL MARKETS CONSULTING)
LIMITED acting by

Director 
Witness signature 
Witness name PAUL ANDERSON
Witness address: 16 CHARLOTTE SQUARE
EDINBURGH
EH2 4DF

Address: 60 Gresham Street, London EC2V 7BB

Attention: Euan Fraser/ Nick Baker

Executed as a deed, but not delivered until the)
first date specified on page 1, by GLASS)
CLIENT PROGRAMS LTD acting by)

Director 
Witness signature 
Witness name PAUL ANDERSON
Witness address 16 CHARLOTTE SQUARE
EDINBURGH
EH2 4DF

Address: 60 Gresham Street, London EC2V 7BB

Attention: Euan Fraser/ Nick Baker

THE PARENT

Executed as a deed, but not delivered until the)
first date specified on page 1, by CAELIUS)
MIDCO 2 LIMITED acting by)

Director 
Witness signature 
Witness name: PAUL ANDERSON
Witness address 16 CHARLOTTE SQUARE
EDINBURGH
EH2 4DF

Address: 60 Gresham Street, London EC2V 7BB

Attention: Euan Fraser/ Nick Baker

THE SECURITY AGENT

Signed by Chris Birt for)
and on behalf of LLOYDS BANK PLC)
)

Signature _____

A large, irregular black redaction mark covering the signature area.

Address: 10 Gresham Street, London
EC2V 7AE

Facsimile No: 020 7158 3235

Attention: Jill Young